

23STCV26846 23STCV26846

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-27

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Tentative Ruling

Avalos v. Allied Universal Security

Services, Case no. 23STCV26846

Hearing date July 27, 2026

Defendant

Trejo's Motion for Summary Adjudication as to Punitive Damages

Plaintiff

Avalos sues defendants Allied Universal Security Services, LLP, White Memorial Medical Center and Trejo, alleging he was forcibly removed from White Memorial by Trejo, causing injuries. The court granted leave for plaintiff to file an amended complaint alleging exemplary/punitive damages against Trejo. 3/10/26 Min. Order. Trejo moves for summary adjudication on punitive damages. Plaintiff opposes.

The

rules applicable to summary judgments apply to motions for summary adjudication. Blue Shield of California Life & Health Ins. Co. v. Superior Court (2011) 192 Cal.App.4th 727. Moving party bears the burden of persuasion that there is no triable issue of material fact and it is entitled to judgment as a matter of law. Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850. Defendant may: (1) affirmatively negate one or more element of the cause of action; or (2) establish "plaintiff does not possess, and cannot reasonably obtain, needed evidence..." Id.; Code Civ. Proc. §437c(o)(2). Once moving party meets the initial burden, it shifts to

respondent to show a triable issue of material fact. Aguilar, supra.

Plaintiff

is only entitled to punitive damages on a showing of oppression, fraud or malice. Civ. Code §3294(a). Facts giving rise to a claim for punitive damages must be pleaded specifically; vague or conclusory allegations are insufficient. G.D. Searle & Company v. Superior Court (1975) 49 Cal.App.3d 22, 29. Recklessness or negligence, even gross negligence, are insufficient to support an award of punitive damage; carelessness or ignorance are not enough. Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 88.

Trejo

moves for summary adjudication, arguing plaintiff cannot establish malice, oppression or fraud as required by Civ. Code §3294. Trejo argues the evidence demonstrates he was “responding defensively to Plaintiff’s aggression, not acting with willful disregard of Plaintiff’s rights or safety.” Mtn., 4:6-7.

The

subject incident occurred on 6/25/23 outside defendant White Memorial Medical Center in Los Angeles. SSMF 1. Plaintiff presented with injuries sustained when he was assaulted by two non-party individuals. SSMF 2. Trejo was employed as a security professional at White Memorial by defendant Allied. SSMF 3. While waiting for treatment, plaintiff became agitated. SSMF 4. Plaintiff got into an argument with a nurse and used profanity toward staff. SSMF 5-6. The nurse requested plaintiff be escorted off the property. SSMF 8.

Nonparty

security professionals attempted to remove plaintiff. SSMF 9. Plaintiff remained uncooperative; Trejo was called in to assist. SSMF 10-11. After removing plaintiff from the property, plaintiff continued making threats towards Trejo and began moving back towards the hospital. SSMF 15-17. Trejo told plaintiff to leave the area, after which plaintiff struck Trejo and continued making threats. SSMF 18-23. Plaintiff was restrained by other Allied employees and moved further away from the hospital. SSMF 24, 26.

Trejo

saw plaintiff place a hand in a pocket. SSMF 27. Trejo asserts “Due to the ongoing threats towards his own safety and [p]laintiff’s aggression in starting the altercation... Trejo feared that [p]laintiff may have a weapon.” SSMF 28. Trejo “took action to try to neutralize any potential threat to his life.” SSMF

29. Plaintiff alleges Trejo called him a “ni**er.” SSMF 33. Trejo admits to using the slur during the altercation. SSMF 34. Trejo states he is “an African American and use of that word is culturally normal and used in the same manner as ‘dude,’ ‘bro,’ or ‘man.’” SSMF 35. Trejo asserts it was not intended as a racial slur or in a derogatory manner. Id. Trejo asserts plaintiff referred to Trejo as a “ni**er.” SSMF 36. This is sufficient to shift the burden to plaintiff.

Plaintiff

argues Trejo's evidence as to plaintiff's alleged threats and insults arises from Trejo's self-serving declaration. Per Trejo's deposition testimony, Trejo followed plaintiff into the street where Trejo allegedly insulted plaintiff. Plaintiff argues how the physical altercation began is disputed.

Allied's

use-of-force policies prevent use of physical force unless an employee feels their life is threatened. SSAMF 37-43. Allied's procedures require employees to call the Los Angeles Police Department if a party is non-cooperative. SSAMF 43. The LAPD was not called during the subject incident by Trejo or another Allied employee. SSAMF 44.

Trejo

was the only Allied employee to re-approach plaintiff after plaintiff was removed from White Memorial. SSAMF 45. A non-party Allied employee instructed Trejo to “walk away,” but Trejo refused to comply. SSAMF 46; Depo. Peralez, 51:7-21. Trejo admitted he followed plaintiff off the property. SSAMF 47; Depo. Trejo, 236:1-15. Trejo admitted to punching plaintiff one time. SSAMF 49; Depo. Trejo, 272:3-7. Trejo admitted he never saw plaintiff with a weapon. SSAMF 50; Depo. Trejo, 237:2-18.

Trejo

admitted to calling plaintiff “ni**er” “a bunch of times” and that he was “cussing at him, calling him a ni**a” while following plaintiff into the street. SSAMF 51; Depo. Trejo, 190:8-21, 237:19-25; 246:15-25. Plaintiff testified Trejo kicked plaintiff, causing him to temporarily lose consciousness in the street. SSAMF 52; Depo. Avalos, 107:18-22.

It

is clear a physical altercation between plaintiff and Trejo occurred. Insults, including racial slurs, were exchanged. The evidence that Trejo pursued

plaintiff into the street and off the property that Trejo was hired to protect, as well as evidence that other Allied employees warned Trejo to walk away, and Trejo refused to do so, create a triable issue of fact as to who initiated the confrontation and how it unfolded. This creates a triable issue of fact as to whether Trejo acted with malice in pursuing, insulting and striking plaintiff.

“Malice”

means conduct intended by defendant to cause injury to plaintiff, or despicable conduct by defendant with a willful and conscious disregard of rights or safety of others. Civ. Code §3294(c)(1). Malice does not require an actual intent to harm. Conscious disregard for the safety of another is sufficient where defendant is aware of the probable dangerous consequences of his conduct and willfully and deliberately fails to avoid those consequences. See Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896; See also Hoch v. Allied-Signal, Inc. (1994) 24 Cal.App.4th 48, 60-61. Pursuing plaintiff off hospital property, using epithets and striking plaintiff could be found by a reasonable trier of fact to be proof of malice. Summary adjudication is not appropriate. DENIED.